

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Cool Living LLC,

Complainant,

v.

ALPI U.S.A., Inc. and

ALPI Air & Sea A/S,

Respondents.

DOCKET NO. 25-28

**NON-PARTY WITNESS MICHAEL
HAAHR HANSEN’S MOTION TO
QUASH OR, IN THE ALTERNATIVE,
TO MODIFY DEPOSITION SUBPOENA**

Non-party witness Michael Haahr Hansen (“Mr. Hansen”), by and through undersigned counsel, respectfully moves under 46 C.F.R. § 502.132 to quash the deposition subpoena served on him on or about June 29, 2026, commanding his appearance for a remote deposition on July 7, 2026. The subpoena violates the mandatory twenty-day service requirement of 46 C.F.R. § 502.132(c) and should be quashed. In the alternative, should the deposition be ordered to proceed, Mr. Hansen requests that it be conducted in person as set forth below.

I. PRELIMINARY STATEMENT

Mr. Hansen is a former employee of Respondents and a non-party to this proceeding. He is not a party, officer, director, or managing agent of any party, and his attendance may be compelled only by a subpoena that complies with the Commission’s rules. The subpoena served on him does not. It was issued and served on or about June 29, 2026, and commands his deposition just eight days later, on July 7, 2026, far short of the twenty days that § 502.132(c) requires between service and compliance. No party has stipulated to shorter notice, and no order of the Presiding Officer dispenses with the requirement. The same defect makes the subpoena’s own advisement illusory: it tells Mr. Hansen he may move to quash within ten days of service, yet commands his appearance before that ten-day period expires. The subpoena is independently defective in commanding a “virtual” deposition that neither a stipulation nor an order authorizes as to Mr.

Hansen, and that identifies no place of compliance, officer, or oath procedure. For these reasons, the subpoena should be quashed.

II. BACKGROUND

On June 24, 2026, the Presiding Officer extended the discovery period to July 13, 2026, for the limited purpose of allowing Complainant to depose Mr. Hansen, on the condition that Complainant “compels his attendance by subpoena or Michael Haahr appears voluntarily within the extended period.” The Presiding Officer found that Mr. Hansen “is a former employee of Respondents and not a current employee,” that “his deposition must be obtained by subpoena or voluntary appearance,” and that Respondents “are not required to produce him pursuant to a notice of deposition.” The Order did not waive or shorten any requirement governing the issuance or service of a subpoena.

On or about June 29, 2026, Complainant served a subpoena commanding Mr. Hansen to appear for a deposition on July 7, 2026. The subpoena directs that the deposition proceed “virtually” and states that counsel for Complainant will furnish access information at some later time. It identifies no place of compliance, no officer before whom the deposition will be taken, and no procedure for administering the oath. It advises that, “[p]ursuant to FMC Rule 502.132,” the recipient “may move to quash or modify the subpoena within ten (10) days after service of the subpoena.”

III. LEGAL STANDARD

A person to whom a subpoena is directed may move to quash or modify it. 46 C.F.R. § 502.132. For subpoenas served in connection with a deposition, the requesting party must arrange service at least twenty days before the date set for compliance, the recipient may move to quash or modify within ten days after service, and a reply is due seven days thereafter. *Id.* § 502.132(c).

Where the Commission's rules do not control, the Federal Rules of Civil Procedure apply to the extent consistent with sound administrative practice. 46 C.F.R. § 502.12; 46 U.S.C. § 41303(a)(2); *see FMC v. S.C. State Ports Auth.*, 535 U.S. 743, 757–59 (2002) (discovery in Commission adjudications largely mirrors discovery in federal civil litigation). Rule 45 in turn requires a court to quash or modify a subpoena that “fails to allow a reasonable time to comply” or “subjects a person to undue burden.” Fed. R. Civ. P. 45(d)(3)(A). The burden imposed on a non-party is entitled to special weight in that analysis. *Heidelberg Ams., Inc. v. Tokyo Kikai Seisakusho, Ltd.*, 333 F.3d 38, 41–42 (1st Cir. 2003).

IV. ARGUMENT

A. The Subpoena Violates the Mandatory Twenty-Day Service Requirement

Rule 132(c) governs subpoenas served in connection with a deposition. It provides that, “unless otherwise agreed to by all parties or otherwise ordered by the presiding officer, the party who has requested the subpoena shall arrange that it be served at least twenty (20) days prior to the date specified in the subpoena for compliance therewith.” 46 C.F.R. § 502.132(c). The requirement is mandatory. The rule says the requesting party “shall” arrange service at least twenty days out, and it permits departure only by stipulation of all parties or by order of the Presiding Officer.

Neither exception applies. The subpoena was served on or about June 29, 2026, and commands compliance on July 7, 2026, an interval of eight days. Mr. Hansen, a non-party, has stipulated to nothing, and no order of the Presiding Officer authorizes service on fewer than twenty days' notice. The June 24 Order extended the discovery deadline, but it did not purport to shorten the subpoena-service period or excuse compliance with § 502.132(c); to the contrary, by conditioning the extension on Complainant's “compel[ling] his attendance by subpoena,” the

Order presupposed a subpoena issued and served in conformity with the rules. The twenty-day requirement was not met, and the subpoena should be quashed.

B. The Compliance Date Makes the Right to Move to Quash Illusory

The same rule affords the subpoenaed person ten days from service to move to quash or modify, with a reply seven days thereafter. 46 C.F.R. § 502.132(c). With service on or about June 29, 2026, that ten-day period runs to on or about July 9, 2026, two days after the July 7 compliance date the subpoena commands. The subpoena thus directs Mr. Hansen to appear before the very period for challenging it has run, and before the Presiding Officer could rule on a timely motion. The subpoena's own advisement, that Mr. Hansen "may move to quash or modify the subpoena within ten (10) days after service," confirms the contradiction. A subpoena that extinguishes the recipient's right to be heard before compliance cannot stand.

C. The Subpoena Neither Authorizes Nor Specifies a Remote Deposition

A deposition may be taken by remote means only where "[t]he parties may stipulate, or the presiding officer may on motion order, that a deposition be taken by telephone or other remote means." 46 C.F.R. § 502.143(b)(4). Mr. Hansen is not a party and has stipulated to nothing, and no order authorizes a remote deposition of him. Unlike the depositions of Complainant's own principals, which were authorized to proceed remotely by written stipulation, no stipulation or order supports remote examination of Mr. Hansen.

The subpoena is defective for the further reason that "virtually" is not a place. The subpoena identifies no location at which Mr. Hansen must appear, no officer authorized to administer the oath under 46 C.F.R. § 502.142, no remote platform, and no procedure by which the oath will be administered or the testimony recorded. Deferring that information to a later,

unspecified communication from Complainant's counsel does not cure the omission; the command to appear must itself specify how and where compliance occurs.

D. Eight Days' Notice Is Unreasonable and Unduly Burdens a Non-Party

Even apart from the timing violation, the subpoena fails Rule 45's requirement of a reasonable time to comply and imposes an undue burden on a non-party. Fed. R. Civ. P. 45(d)(3)(A). Eight days is not a reasonable time for a non-party former employee to retain counsel, evaluate the subpoena, prepare, and, if warranted, seek relief, particularly in the final week of a discovery period that closes July 13, 2026. Courts afford the burden on non-parties special weight and will quash a subpoena where that burden outweighs the requesting party's need. *Heidelberg Ams., Inc. v. Tokyo Kikai Seisakusho, Ltd.*, 333 F.3d 38, 41–42 (1st Cir. 2003) (affirming the quashing of a subpoena directed to a non-party and explaining that concern for the burden on non-parties is entitled to special weight). The burden here falls entirely on a witness with no stake in the proceeding, and it is a burden of Complainant's own making, the product of Complainant's decision, after the Presiding Officer found it had not been diligent, to serve on the eve of the deadline. Should the deposition be compelled despite these defects, Rule 45 independently requires that Mr. Hansen be protected from the significant expense of compliance. *See Legal Voice v. Stormans Inc.*, 738 F.3d 1178, 1184 (9th Cir. 2013) (cost-shifting to protect a non-party from significant expense of compliance is mandatory).

E. The Subpoena's Defects Are the Product of Complainant's Own Delay and Provide No Basis for Relief

The subpoena's defects cannot be excused, because the time pressure that produced them is the result of Complainant's own delay. Mr. Hansen was identified as a witness with relevant knowledge in the initial disclosures served January 21, 2026, yet Complainant took no step to

depose him during the discovery period that closed June 13, 2026, and did not raise the need to do so at the June 12 status conference convened to address the discovery dispute. The Presiding Officer has already found that Complainant failed to exercise due diligence. Having created the very deadline pressure it now faces, Complainant cannot shift the consequences onto a non-party by serving a subpoena that disregards the Commission's twenty-day requirement. There is no equitable basis to excuse that violation, and none to compel Mr. Hansen's appearance on eight days' notice to cure a delay that was Complainant's alone.

V. CONCLUSION

For the foregoing reasons, Mr. Hansen respectfully requests that the Presiding Officer quash the subpoena. In the alternative, should the Presiding Officer nonetheless order the deposition to proceed, Mr. Hansen respectfully requests that it be conducted in person at the offices of Miller & Martin PLLC, 1180 W. Peachtree Street NW, Suite 2100, Atlanta, Georgia 30309.

Dated: July 2, 2026

Respectfully submitted,

MILLER & MARTIN PLLC

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CERTIFICATE OF SERVICE

I hereby certify that on this 2nd day of July, 2026, a true and correct copy of the foregoing was served via electronic mail upon counsel of record for Complainant, Christopher R. Nolan (chris.nolan@hkklaw.com) and Ashleigh T. Higgs (ashleigh.higgs@hkklaw.com), Holland & Knight LLP; counsel of record for Respondents, Michael P. Kohler (Michael.Kohler@millermartin.com) and Daniel E.L. Bang (delb@usadenmarklaw.com); Complainant's representative Tony Hopkins (tony@thatcooliving.com); and the Office of the Secretary, Federal Maritime Commission, at secretary@fmc.gov, with a courtesy copy to judges@fmc.gov.

/s/ Daniel Bang
Daniel Emil Lindberg Bang